

ORIGINAL

(S E R V E D)
(MARCH 20, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

March 20, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

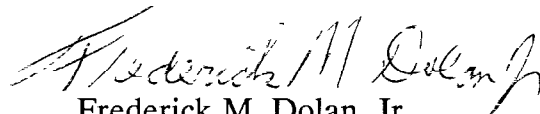
SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

MOTION TO LIMIT THE SCOPE OF THE PROTECTIVE
ORDER DENIED; LEAVE GRANTED NOT TO FILE A PUBLIC
VERSION OF THE MOTION FOR SUMMARY JUDGMENT

Complainants request limiting the scope of the protective order entered April 20, 1990, or to grant leave to omit filing a public, non-confidential version of a Motion for Summary Judgment for the West Coast-Guam Trade.

Sea-Land Service, Inc. and American President Lines, Ltd. (APL) replied objecting to a grant of the primary relief sought but indicating no opposition to the alternative relief requested.

The parties have had informal discussions as to when the declassification process should occur and what should be made public but no agreement has been reached as yet. The parties are encouraged to pursue this endeavor at the proper moment. APL indicates that the time to address the application of the Protective Order to individual items of evidence should be when the evidentiary record has been closed because inevitably the great bulk of discovery subject to the Protective Order will probably never enter the record. In the circumstances complainants' alternative request is granted for leave not to file a public version of the motion for summary judgment.

A handwritten signature in black ink, appearing to read "Frederick M. Dolan, Jr.", is positioned above the printed name.

Frederick M. Dolan, Jr.
Administrative Law Judge